

8 July 2025

Ms. Mihaela Tarnovschi
Deputy Counsel
Secretariat of the ICC International Court of Arbitration
33-43 avenue du Président Wilson
75116 Paris, France

Re: Case No. 29534/ICA3
Elcomponics Holdings B.V. v. Invictus GmbH and Invictus Cable GmbH
Request for Extension - Comments on Arbitrator Qualifications

Dear Ms. Tarnovschi,

We acknowledge receipt of the Secretariat's correspondence dated 2 July 2025 regarding the constitution of the arbitral tribunal under Article 12(3) of the ICC Rules, which invited Claimant's comments on Respondents' suggestions regarding the qualifications for the sole arbitrator by today, 8 July 2025.

Request for Brief Extension

We respectfully request a brief extension until **15 July 2025** to provide our substantive comments on the arbitrator qualification requirements. This request is made on the following grounds:

First, the strategic importance of arbitrator selection in this dispute involving complex shareholder agreement provisions, Put Option enforcement mechanisms, and cross-border corporate law issues requires careful consideration of the competing qualification proposals.

Second, Respondents' counsel had on 2 July 2025 separately approached us regarding the possibility of joint nomination of a sole arbitrator, as well as an alternative proposal to amend the arbitration agreement to provide for a three-member tribunal. These procedural options materially affect our response to the qualification requirements and warrant integrated consideration.

Third, the requested extension allows us to address comprehensively both the substantive qualification criteria and the procedural alternatives without causing any delay to the overall arbitration timeline, particularly given that Respondents have been granted an extension until 4 August 2025 for their Answer under Articles 5(2) and 5(4).

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Confirmation of Position

We confirm that this extension request does not affect our commitment to the expeditious conduct of this time-sensitive arbitration involving Put Option enforcement. We will provide detailed comments addressing both Respondents' qualification suggestions and the procedural alternatives by 15 July 2025.

We appreciate the Secretariat's consideration of this request.
Yours sincerely,



Sudipta Routh
Partner
Luthra and Luthra Law Offices India

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Via ICC Case Connect and email